IN THE SUPERIOR COURT OF JUDICATURE, IN THE HIGH COURT OF JUSTICE, LAW COURT COMPLEX COMMERCIAL DIVISION (10) HELD IN ACCRA ON FRIDAY THE 23RD DAY OF JANUARY, 2026 BEFORE HER LADYSHIP JUSTICE ADELAIDE ABUI KEDDEY, J.

SUIT NO: CM/BDC/0658/2023

NNEST METAL COMPANY
(SUING PER ITS LAWFUL ATTORNEY NIDAL NASSEREDDINE) - PLAINTIFF

VS.

MOHAMAD NASSEREDDINE - DEFENDANT

JUDGMENT

---

[1] The Plaintiff commenced the instant action by filing a Writ of Summons and Statement of Claim against the Defendant through its lawful attorney, Nidal Nassereddine on 8th August 2023.

[2] The Plaintiff is a registered company in the Republic of Ghana engaged in the business of buying and processing of scrap metals.

[3] Plaintiff avers that the Defendant is the Managing Director of Plaintiff company.

[4] Upon service of the said processes on Defendant, he filed his Statement of Defence on 13th October 2023.

[5] Subsequently, the Plaintiff amended the Writ of Summons and Statement of Claim pursuant to an Order of the Court dated 11th July 2024. The Plaintiff is praying the following reliefs:

a. An order in favour of the Plaintiff against the Defendant to release the three (3) properties situate in Turkey as described above and held in trust by the Defendant in trust for the Plaintiff. (Subsequently the Plaintiff withdrew Relief "A" with leave of the court).
b. An order against the Defendant to undertake the stock taking exercise to establish stock level of the Plaintiff company.
c. An order directed against the Defendant to properly hand-over his duties as the Managing Director of Plaintiff company to the CEO.
d. An order directed against the Defendant for the recovery of the sum of US$280,000.00 wrongly received by the Defendant.
e. Damages for breach of contract.
f. Costs inclusive of legal fees.

[6] Thereafter, the Defendant filed an Amended Statement of Defence on 1st November 2024.

[7] After the Case Management Conference, trial commenced on 20th October 2025 and ended on 29th October 2025.

THE CASE OF THE PLAINTIFF

[8] Plaintiff contends that it came to light after Defendant abandoned Plaintiff Company that the Contract of Employment between the Defendant and Plaintiff's head office was never signed. However, Defendant managed the operations of the Plaintiff and its branches.

[9] Further, Plaintiff contends that per the said Employment Contract, Plaintiff was responsible for daily management of Stock, monthly settlement of Stock and duties assigned by the Chief Executive Officer of Plaintiff. The said CEO is the brother of Defendant.

[10] It is the case of Plaintiff that the Defendant failed to take stock after repeated demands on him by the CEO, abandoned his duties as Managing Director (MD) and left his post.

[11] That the Defendant failed to hand over his duties as MD of Plaintiff company and has set up a rival business competing with Plaintiff contrary to the terms of Defendant's employment contract in respect of a no competition policy.

[12] Plaintiff avers that the Defendant was offered 5% commission of the net profit of the company as his renumeration in the stead of monthly salary of $2000.00.

[13] That, the Defendant used his position as MD to request for an amount of $280,000 to be paid to him in three tranches of $30,000, $50,000 and $200.00 within a period of one week. Thereafter he left the company.

[14] That, the wrongful payment of the said $280,000 has occasioned a breach of the contract and the fiduciary duty of Defendant.

[15] In support of its case, the Plaintiff tendered the following exhibits attached to the Witness Statement of Mahmoud El Kurdi dated 27th February 2025 and the Supplementary dated 17th October 2025:

- ***Exhibit "A" series*** - Certificate of Business etc.
- ***Exhibit "B"*** series - Employment Contract, Business Call Card…
- ***Exhibit "C"*** - Power of Attorney from NN Metal DMCC, a registered company in Dubai to the Plaintiff company. (Same was rejected by the Court and marked as ***Exhibit "R"***)
- ***Exhibit "D"*** – Pictures of the Apartment in Turkey

- ***Exhibit "E"*** – Receipts of Money
- ***Exhibit "F"*** – Letter to Defendant from Plaintiff's Solicitor dated 19th June 2023
- ***Exhibit "G"*** – Defendant's Company details
- ***Exhibit "H"*** – WhatsApp correspondence between Defendant and one Abraham Abdul Malik

THE CASE OF THE DEFENDANT

[16] The Defendant avers that he was approached by his brother Nidal Nassereddine to supervise workers of the Plaintiff company. That there was no employment contract between the parties.

[17] Defendant avers that he was not and has never been the Managing Director of the Plaintiff and has never been appointed as the Managing Director of the Plaintiff.

[18] Further, Defendant contends that he never took stock for the Plaintiff and cannot be said to have abandoned his duties as a Managing Director.

[19] Defendant further denied wrongfully receiving the sum of $280,000.00 from the Plaintiff.

ISSUES FOR DETERMINATION

[20] After the pretrial settlement failed, the parties adopted the following issues for determination.

a. Whether or not an enforceable contract was entered into between the Parties.
b. Whether or not the Defendant has breached the terms of the contract of employment agreement.

c. Whether or not three (3) Housing Units were bought in the name of Defendant to hold in trust for the Plaintiff company.
d. Whether or not the Defendant had the requisite authorization to pay the sum of US$280,000 to himself.
e. Whether or not the Plaintiff has locus and/or capacity to institute the instant action.
f. Whether or not the Nidal Nassereddine is the lawful attorney of the Plaintiff.
g. Any other issue(s) arising out of the pleadings.

[21] To start with, I have to address issues 'e' and 'f' which are, whether or not the Plaintiff has locus and/or capacity to institute the instant action and whether or not Nidal Nassereddine is the lawful attorney of Plaintiff.

[22] Capacity to sue is the right or ability to institute and maintain an action in a court of competent jurisdiction.

[23] The Supreme Court in the case of ***Fosua Adu Poku v Dufie (deceased) and Adu-Poku Mensah 2009 SCGLR 310***, emphasized that the question of capacity is fundamental and a matter of law which may be raised at any stage of the proceedings including on appeal.

[24] Thus, where a person's capacity to institute proceedings is in issue, that person cannot be given a hearing on the merits even if he has a cast iron case. See the case of ***Sakodie I v Boateng II (1982-83) GLR 881***.

[25] Likewise, the court decided in the case of ***Akrong and Another v Bulley (1965) GLR 469***, that the suit was not sustainable because the Plaintiff was not clothed with the requisite capacity at the time of commencing the action.

[26] Thus, the question of capacity like the plea of limitation is not concerned with the merits of the case.

[27] The court is therefore mandated to determine the issue of capacity since it goes to the roots of whether or not to give the Plaintiff a hearing and determine the merits of its claim.

Whether or not the Plaintiff has locus and/or capacity to institute the instant action.

[28] It is trite learning that the Plaintiff as a company is a juristic person with capacity to sue and be sued.

[29] **Section 18 (1) and (2) of the Companies Act, 2019 (Act 992)** states that:

> (1)subject to this Act and to any other enactment, a company shall have (a) full capacity to carry on or undertake any business or activity, do any act, or enter into any transaction; and (b) full rights, powers and privileges for the purposes of paragraph (a).
>
> (2)Without limiting subsection (1), and despite the provisions of any other enactment, a company shall be capable of giving and entering into and being bound by and claiming all rights under a deed or mortgage or other instrument.

[30] The fundamental principle of corporate personality and its distinctiveness from its members was first espoused in the celebrated case of ***Salomon v Salomon [1897] AC 22***.

[31] In the case of ***Morkor v Kuma [1998 - 99] SCGLR 620*** the Supreme Court speaking through Sophia Akuffo JSC (as she then was) held at page 632 thus:

> *"Save as otherwise restricted by its regulations, a company, after its registration, has all the powers of a natural person of full capacity to pursue its authorised business. In this capacity, a company is a corporate being, which, within the bounds of the Companies Code, 1963 (Act 179) and the regulations of the Company, may do everything that a natural person might do. In its own name, it can sue and be sued and it can owe and be owed legal liabilities. A company is, thus, a legal entity with a capacity separate, independent and distinct from the persons constituting it or employed by it. From the time the House of Lords clarified this cardinal principle more than a century ago in the celebrated case of Salomon v Salomon & Co. [1897] AC 22, it has, subject to certain exceptions remained the*

same in all common law countries and is the foundation on which our Companies Code, 1963 is grounded."

[32] Therefore, the Plaintiff company has the right to sue by itself and be sued. However, in the instant case, the Plaintiff commenced the action through its lawful Attorney, Nidal Nassereddine of Plot No. 22, South Industrial Area Adjuma Crescent, Accra.

[33] The Plaintiff, **N N EST METAL COMPANY**, having sued the Defendant through its lawful attorney, is required by law to produce cogent evidence in the form of a Power of Attorney to establish that Nidal Nassereddine is indeed its lawful attorney with authority to sue on its behalf.

[34] **Section 6 of Powers of Attorney Act, 1998 (Act 549)** states that subject to the other provisions of this Act, a general power of attorney in the form set out in the Schedule to this Act shall operate to confer—

(a) on the donee of the power; or

(b) if there is more than one donee, on the donees acting jointly or acting jointly and severally, authority to do on behalf of the donor anything which can be lawfully done by an attorney.

[35] The Plaintiff sought to tender ***Exhibit "C"***, a Power of Attorney between NN METAL DMCC (THE DONOR) of UAE – DUBAI and NNEST METAL COMPANY LTD (DONEE).

[36] However, counsel for Defendant raised an objection to the tendering of same on the grounds that the Power of Attorney emanated from a company purported to be incorporated in Dubai to the Plaintiff which is distinct from the Plaintiff company.

[37] The said objection was sustained by the court. Consequently, ***Exhibit "C"*** was rejected and marked as "R".

[38] Therefore, there is no evidence on record or power of attorney to establish the capacity of Nidal Nassereddine as Plaintiff's lawful Attorney to justify why the Plaintiff commenced the instant action through the said lawful Attorney and not by itself as a juristic person.

[39] Plaintiff company having failed to establish the capacity of its lawful Attorney to sue on its behalf, the Court cannot determine the merits of Plaintiff's claim since the instant action is incompetent.

[40] In view of the reasons stated, the instant action is hereby dismissed.

……..(sgd.)……

JUSTICE ADELAIDE ABUI KEDDEY

JUSTICE OF THE HIGH COURT

COMMERCIAL DIVISION

Counsel:

Barbara Marian Woode, Esq., for Plaintiff - Present

Nana Yaw Ntrakwah, Esq., with Paulina Akosua Danso, Esq. for Defendant - Present

Cases

Akrong and Another v Bulley (1965) GLR 469..... 8

Fosua Adu Poku v Dufie (deceased) and Adu-Poku Mensah 2009 SCGLR 310 8

Morkor v Kuma [1998 - 99] SCGLR 620 10

Sakodie I v Boateng II (1982-83) GLR 881 8

Salomon v Salomon [1897] AC 22 10

Statutes

Section 18 (1) and (2) of the Companies Act, 2019 (Act 992) 9

Section 6 of Powers of Attorney Act, 1998 (Act 549) 11